

4.	30-2025-01535598 Lorn vs. Paramount Convalescent Group, Inc	1. Case Management Conference 2. Motion for Order to Stay Proceedings Paramount Convalescent Group, Inc., Sun Mar Management Services, and Frank Johnson (“Defendants”) move for a stay of this action filed by plaintiff Ratany Lorn (“Lorn”) for wrongful death. This action arises out of the death of decedent Mary Noeun Tep (“Tep”). The Court has ordered arbitration in related action <i>Mary Noeun Tep, by and through her Successor in Interest, Ratany Lorn v. Paramount Convalescent Group, Inc., et al.</i>, Orange County Superior Court Case No. 30-2025 01453794-CU-NP-CJC (the “Tep Action”). The Tep Action is brought by Tep through Lorn, her Successor in Interest, and asserts causes of action for elder abuse and negligence against the same Defendants here. The Tep Action alleges that Tep was a resident of Defendants’ facility from November 16, 2023 through June 2024 during which time Defendants failed to exercise the degree of care that reasonable skilled nursing facility owners would have exercised. As a result, Tep suffered a fractured tibia and fibula from preventable falls. Defendants also failed to provide medical services to Tep’s surgical wound, resulting in an infection. It further alleges that the neglect and abuse arose out of Defendants’ business practices of understaffing and recruiting heavier care residents to receive higher reimbursements. In the instant action, Lorn asserts a cause of action for wrongful death against the same Defendants. As in the Tep Action, Lorn alleges that Defendants neglected Tep while she was in their care and failed to exercise the degree of care that reasonable skilled nursing facility owners would have exercised. Lorn alleges that as a result of the neglect, Tep suffered injuries such as a fractured tibia and fibula from preventable falls as well as an infection to her surgical wound. This action also makes the identical allegations that Defendants’ conduct of understaffing and recruiting heavier care residents resulted in Tep’s injuries. Defendants now seek to stay the instant action pending resolution of that arbitration on the grounds that the overlap between the two actions is substantial. Defendants contend that the arbitrator will decide core questions about Defendants’ liability in connection with the alleged breaches of duty in the provision of skilled nursing care, and causation of the Tep’s injuries and death, and those issues that sit at the center of the wrongful death claim in this case. Code of Civil Procedure section 1281.4 provides, in relevant part: If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. “Any party to a judicial proceeding ‘is entitled to a stay of those proceedings whenever (1) the arbitration of a controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.’ ” (<i>Heritage Provider Network, Inc. v. Superior Court</i> (2008) 158 Cal.App.4th 1146, 1152.) “ ‘The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved.’ [Citation.] ‘In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.’ ” (<i>Ibid.</i>) “A controversy can be a single question of law or fact, and a stay <i>shall</i> be issued upon proper motion if the court has ordered arbitration of a controversy that is also an issue involved in an action or proceeding pending before it.” (<i>Id.</i> at pp. 1152-
----	---	--

1153.) “Thus, a single overlapping issue is sufficient to require imposition of a stay.” (*Id.* at p. 1153.)

Here, these actions are premised on the same alleged abuse and neglect and involve numerous core overlapping issues regarding the care and treatment provided to Tep by Defendants and whether that care and treatment contributed to Tep’s death. Lorn argues that a stay is unwarranted because the cases involve different plaintiffs. However, that is not relevant to the question of whether the Tep Action which has been ordered to arbitration involves an issue in the instant action.

Lorn further argues that a stay should not be imposed because one action seeks punitive and medical special damages while the other action seeks damages to Tep’s heirs. Lorn further points to the fact that the actions will involve different witnesses, as her testimony will not be required to support the elder abuse claim in the Tep Action. These arguments fail. A single overlapping issue is sufficient to warrant a mandatory stay under section 1281.4. Therefore, the fact that the claims for damages will involve different issues or the actions may warrant different witnesses does not preclude the imposition of a stay where there are other numerous other overlapping issues.

In light of the above, the Motion for Stay is **GRANTED**. This action is **ORDERED** stayed pending resolution of the arbitration in the Tep Action.

A **Status Conference** re: Status of Arbitration is set for **February 18, 2027 at 10:30 am in Department C34.**

Moving party to give notice.

6. 30-2025-01511420 Gonzalez vs. Home & Estates Investment, Inc	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories 3. Motion to Compel Further Responses to Form Interrogatories Plaintiff Hector Gonzalez (“Plaintiff”) moves to compel defendants Home and Estates Investment, Inc., Rodjach Investment Properties LLC, and Maricela Rodriguez (“Defendants”) to serve verified responses to Form Interrogatories, Set One, without objections and for an order imposing monetary sanctions against Defendants and their counsel for their failure to serve timely responses. There is no dispute that Defendants have not provided substantive, verified responses to the Form Interrogatories. Thus, the Court finds that further responses are warranted. However, Plaintiff’s request that the responses be without objections is not. Defendants’ counsel served objection-only responses to preserve their objections. No verification by a party is required where the responses contain only objections. (Code Civ. Proc., § 2030.250(a).) <i>Thus, counsel has preserved Defendants’ objections.</i> In light of the above, the Motions to Compel are GRANTED. Defendants are ORDERED to serve further substantive responses to the Form Interrogatories, Set One, within 30 days. As to monetary sanctions, it was Defendants’ failure to stay in contact with their counsel that resulted in counsel being unable to serve substantive responses and there is no evidence that counsel’s conduct was dilatory or contributed to the failure. Thus, sanctions against counsel
--	---